

## 23LBCV00750 23LBCV00750

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-22

Source URL: [https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LB%20%2CS27%2C09%2F22%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C09%2F22%2F2026)

Source SHA-256: 4cf09c21c69ec31ecd086cde8efc06ab3bf5d51d6a613e797d9e0acc2127b4aa

Case Number: 23LBCV00750 Hearing Date: September 22, 2026 Dept: S27

### 1. Background

#### Facts

Judgment Creditor Kinecta Federal

Credit Union filed a complaint against Judgment Debtor Hector Reyna alleging Judgment Debtor defaulted on a loan, thereby leaving an outstanding balance of \$17,558.29, and on a revolving credit account (credit card), with an outstanding balance of \$10,39518. On April 25, 2023, Judgment Creditor filed a complaint for 1. Breach of Unsecured Written Agreement 2. Common Count 3. Breach of Agreement 4. Open Book Account, and 5. Account Stated.

On December 7, 2023, the clerk entered Judgment Debtor's default. On December 8, 2023, the Court entered a default judgment for \$32,375.60. On April 22, 2026, the clerk issued a writ of execution, which led to judgment debtor filing a claim of exemption, and the setting of the hearing by Judgment Creditor.

### 2. Prior

#### Hearing

The Court was originally scheduled to hear this claim of exemption on 8/11/26.

Prior to the hearing, the Court issued a tentative ruling setting forth the applicable law governing claims of exemption, and then analyzing the present claim. The Court found the judgment debtor had failed to provide any documentation supporting the claim of exemption, and continued the hearing to require him to do so. Specifically, the Court ordered him to email copies of his supporting documentation to Judgment Creditor for review and to

file copies of the documentation with the Court.

### 3. Continued

#### Hearing

On 9/04/26, Judgment Creditor filed a supplemental memorandum in support of its opposition to the claim of exemption. Judgment Creditor indicates it has received no emailed documentation for review. The Court's file reveals that no supporting documentation has been filed either. CCP §706.050(a)(1) permits a judgment creditor to levy twenty percent of an individual's disposable earnings for the week by way of an earnings withholding order. §706.011 defines "disposable earnings" as the portion of an individual's earnings that remain after deducting all amounts required to be withheld by law.

The Court finds Judgment Debtor failed to support his claim of exemption, and permits Judgment Creditor to execute on the earnings withholding order to the full extent of the law.

Judgment Creditor is ordered to give notice.